

DRAFT — FOR DISCUSSION PURPOSES ONLY

MEMORANDUM OF AGREEMENT

Concerning Potential Collaboration and Licensing of Hymn Content

This document is an initial business discussion draft and is subject to review and revision by the parties and their respective legal advisers. It is not a final legal agreement and does not create binding commercial, licensing, or financial obligations unless and until the parties execute a definitive written agreement.

Date of draft: [To be agreed by the parties]

Reference: LiturgyFlow × Jesuit Music Ministry (JMM) — Hymn Content Collaboration (Draft MOA)

1. PARTIES

This Memorandum of Agreement (“MOA”) is entered into for discussion purposes by and between:

LiturgyFlow

(“LiturgyFlow” or the “Platform Operator”)

[Legal entity name, address, and authorized representative — [To be agreed by the parties]]

and

Jesuit Music Ministry (JMM)

(“Publisher” or “JMM”)

[Legal entity name, address, and authorized representative — [To be agreed by the parties]]

LiturgyFlow and JMM are referred to individually as a “Party” and collectively as the “Parties.”

2. PURPOSE

The Parties wish to explore a collaboration under which applicable hymn and related musical content controlled or administered by the Publisher may be used within LiturgyFlow’s Mass presentation-generation workflow for Catholic churches and parish communities.

This MOA sets out the Parties’ shared understanding of the intended collaboration, the nature of LiturgyFlow’s use of hymn content, and the principal topics that would need to be agreed in any subsequent definitive agreement. It is intended to facilitate constructive discussion and does not itself constitute a completed license, partnership, joint venture, or revenue-sharing arrangement.

3. LITURGYFLOW

LiturgyFlow is a web-based tool that helps Catholic churches and parish communities prepare Mass presentations and related liturgical media. Among other capabilities, LiturgyFlow assists users in assembling materials commonly used in the celebration of Mass, including readings and hymn-related presentation slides.

LiturgyFlow serves churches, parish media teams, and related Catholic communities who prepare presentation materials for worship. Further operational and commercial details of the Platform Operator’s business are [To be agreed by the parties] for inclusion in any definitive agreement, as appropriate.

4. HYMNS AND CONTENT

For LiturgyFlow to generate complete Mass presentation materials, applicable hymn content—including lyrics—must be available within the platform when a church selects a hymn for inclusion in a Mass presentation.

Accordingly, where licensed and authorized, LiturgyFlow may store applicable hymn content from the Publisher’s repertoire for the limited purpose of enabling presentation generation. When a church selects a hymn, LiturgyFlow may automatically format the corresponding lyrics into the resulting PowerPoint (or similar) Mass presentation.

Nothing in this section is intended to expand the scope of permitted use beyond what the Parties later agree in writing. The specific repertoire, formats, metadata, delivery methods, and update processes for such content are [To be agreed by the parties].

5. INTENDED USE

The intended use of Publisher hymn content under any collaboration contemplated by this MOA is the incorporation of that content into church Mass presentation materials prepared through LiturgyFlow (for example, lyric slides within a Mass PowerPoint deck used by a parish in connection with worship).

LiturgyFlow is not intended to operate as:

- an independent hymn-lyrics publishing service; or
- a standalone lyrics-distribution service for general public browsing, download, or redistribution of lyrics outside the Mass presentation-generation workflow.

Any additional or different uses (including public display, print reproduction, streaming, recording, or redistribution outside Mass presentation materials) are outside the scope of this draft and are [To be agreed by the parties], if at all.

6. COPYRIGHT OWNERSHIP

Each Party retains all right, title, and interest in and to its respective intellectual property.

Without limiting the foregoing:

- LiturgyFlow does not claim ownership of third-party copyrighted songs, lyrics, musical compositions, or other Publisher-controlled content.
- The Publisher does not, by discussing this collaboration, claim ownership of LiturgyFlow’s platform, trademarks, branding, software, workflows, or other LiturgyFlow intellectual property.
- Ownership of any jointly developed materials, if any, is [To be agreed by the parties].

Any license contemplated herein is a permission to use specified content on agreed terms, not a transfer of ownership.

7. LICENSE

Subject to execution of a definitive agreement, the Publisher may grant LiturgyFlow an appropriate permission and/or license to use the agreed repertoire of hymn content within LiturgyFlow for the intended uses described in Section 5.

The following license terms remain open and are expressly not decided by this draft:

Topic	Status
Repertoire (titles, catalogs, editions, languages)	[To be agreed by the parties]

Permitted uses and any restrictions	<i>[To be agreed by the parties]</i>
Territory	<i>[To be agreed by the parties]</i>
Duration / term of license	<i>[To be agreed by the parties]</i>
Exclusivity or non-exclusivity	<i>[To be agreed by the parties]</i>
Sublicensing (if any) to churches or affiliates	<i>[To be agreed by the parties]</i>
Delivery, updates, and withdrawal of titles	<i>[To be agreed by the parties]</i>
Attribution / copyright notice requirements	<i>[To be agreed by the parties]</i>
Other commercial or usage conditions	<i>[To be agreed by the parties]</i>

No license is granted by this MOA alone.

8. COMMERCIAL ARRANGEMENT

The Parties welcome a good-faith conversation about an appropriate commercial arrangement associated with permission to include applicable Publisher repertoire within LiturgyFlow's Mass presentation workflow — so that parish teams can prepare complete Mass materials while respecting the Publisher's rights.

Any such arrangement would be informed by factors such as:

- the applicable repertoire;
- the intended use within LiturgyFlow's Mass presentation workflow;
- territory;
- the number and type of users (for example, churches, parishes, or other authorized accounts); and
- the usage model.

Publisher permission arrangements are separate from LiturgyFlow's public parish subscription pricing.

Specific commercial terms — including any licensing fees, royalties, or other consideration, if applicable — are **[To be agreed by the parties]** and would be set out only in a definitive written agreement (or schedules thereto).

This MOA does not establish any fee, royalty, or payment obligation.

9. REPORTING

The Parties contemplate that LiturgyFlow may provide reasonable usage reports concerning the licensed repertoire (for example, information helpful to understanding which titles are selected or used within the Mass presentation workflow), in a form and frequency that is *[To be agreed by the parties]*.

Reporting under any definitive agreement is intended to support transparency regarding use of the licensed repertoire. It is not intended to require disclosure of LiturgyFlow's complete financial records, overall business finances, or unrelated commercial information.

Any financial reporting beyond agreed usage reporting, and any audit rights or audit procedures, are **[To be agreed by the parties]** and, if included, would be limited to what is reasonably necessary for the licensed repertoire and related fees.

10. CONFIDENTIALITY

Each Party agrees to treat as confidential any non-public business, technical, and commercial information exchanged by the other Party in connection with discussions under this MOA, and to use such information only for evaluating and negotiating the contemplated collaboration.

Confidential information does not include information that: (a) is or becomes publicly available other than through breach of this section; (b) was already known to the receiving Party without confidentiality obligation; (c) is independently developed without use of the other Party's confidential information; or (d) is rightfully received from a third party without confidentiality restriction.

Nothing in this section requires LiturgyFlow to disclose proprietary technical details of its platform beyond what LiturgyFlow chooses to share for discussion purposes. Duration of confidentiality obligations, permitted disclosures (including to legal advisers), and related remedies are [To be agreed by the parties].

11. TERM AND TERMINATION

The duration of any definitive agreement, renewal terms, and termination rights (including termination for convenience, for cause, and effect of termination on licensed content and materials already generated) are **[To be agreed by the parties]**.

Until a definitive agreement is signed, either Party may discontinue discussions at any time. Discontinuation of discussions under this draft MOA does not, by itself, create liability for the other Party, except as may arise under separately agreed confidentiality obligations, if any.

12. LIMITATIONS

Any collaboration or license arising from these discussions would apply only to:

- the repertoire expressly agreed by the Parties; and
- the uses expressly agreed by the Parties.

No broader rights are implied. Content not included in the agreed repertoire, and uses not expressly authorized, remain outside the scope of any contemplated arrangement.

Governing law, dispute resolution, indemnity, limitation of liability, warranties, and other legal terms customarily addressed in a definitive agreement are **[To be agreed by the parties]** and are not established by this draft.

13. SIGNATURES

By signing below, the Parties acknowledge that they have reviewed this draft for discussion purposes. Signatures on this draft MOA confirm willingness to continue good-faith discussions and do not, by themselves, create a binding license or commercial payment obligation, unless the Parties expressly state otherwise in a subsequent definitive written agreement.

FOR LITURGYFLOW

Authorized signature: _____

Name: _____

Title: _____

Date: _____

FOR JESUIT MUSIC MINISTRY (JMM)

Authorized signature: _____

Name: _____

Title: _____

Date: _____

End of Draft MOA — For Discussion Purposes Only